

SUPREME COURT OF THE STATE OF NEW YORK  
COUNTY OF NEW YORK

-----X  
KENNETH COPELAND,

Plaintiff,

-against-

THE CITY OF NEW YORK, NEW YORK CITY  
POLICE DEPARTMENT,  
POLICE OFFICER ROBIN LOHIER, SHIELD 09654,  
FROM 6<sup>TH</sup> PRECINCT,  
POLICE OFFICER PETER PLAY, SHIELD 21378  
FROM 6<sup>TH</sup> PRECINCT,

Defendants.  
-----X

Index No.:

Date Purchased:

Plaintiff designates  
New York County as the  
place of trial

The basis of venue is  
location of occurrence

### **SUMMONS**

Plaintiff resides at  
951 East 106<sup>th</sup> Street,  
Brooklyn, New York 11236  
County of Kings.

To the above named Defendant(s):

YOU ARE HEREBY SUMMONED and required to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance, on the Plaintiff's Attorney within twenty (20) days after service of this summons, exclusive of the day of service (or within thirty (30) days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: New York, New York  
April 18, 2013

Yours etc.,

/S/  
ADAM M. THOMPSON, ESQ.  
Attorney for Plaintiff  
111 John Street, Suite 2403  
New York, New York 10038  
(212) 267-2424  
1-888-279-7324 (fax)

TO: THE CITY OF NEW YORK  
100 Church Street  
New York, N.Y. 10007

NEW YORK CITY POLICE DEPARTMENT  
1 Police Plaza  
New York, New York 10007

POLICE OFFICER ROBIN LOHIER, Shield 09654  
Precinct 6<sup>th</sup>  
233 West 10<sup>th</sup> Street,  
New York, NY, 10014

POLICE OFFICER PETER PLAY, Shield 21378  
Precinct 6<sup>th</sup>  
233 West 10<sup>th</sup> Street,  
New York, NY, 10014

SUPREME COURT OF THE STATE OF NEW YORK  
COUNTY OF NEW YORK

-----X  
KENNETH COPELAND,

Plaintiff,

-against-

**VERIFIED COMPLAINT**

Index No.:

THE CITY OF NEW YORK, NEW YORK CITY  
POLICE DEPARTMENT, POLICE OFFICER  
ROBIN LOHIER, SHIELD 09654, FROM 6<sup>TH</sup>  
PRECINCT, POLICE OFFICER PETER PLAY,  
SHIELD 21378, FROM 6<sup>TH</sup> PRECINCT.

Plaintiff Demands Trial By Jury

Defendants.  
-----X

Plaintiff, by his attorney, ADAM M. THOMPSON, ESQ., as and for his Verified  
Complaint, hereby alleges, upon information and belief, as follows:

**AS AND FOR A FIRST CAUSE OF ACTION ON  
BEHALF OF PLAINTIFF FOR ASSAULT AND BATTERY**

1. At all times relevant herein, plaintiff, KENNETH COPELAND was and is a natural person and citizen of the United States, domiciliary in the County of Kings, City of Brooklyn, and State of New York.
2. At all times hereinafter mentioned defendant, THE CITY OF NEW YORK was and is a municipal corporation, duly organized and existing under and by virtue of the laws of the State of New York.
3. At all times hereinafter mentioned defendant, THE NEW YORK CITY POLICE DEPARTMENT was and is a municipal corporation, duly organized and existing under and by virtue of the laws of the State of New York
4. Plaintiff has complied with all of the conditions precedent to the bringing of this action

- and in particular has, on April 12, 2012 and within ninety (90) days after the cause of action had accrued, duly served the defendant with a Notice of Claim.
5. At all times hereinafter mentioned, defendant, THE CITY OF NEW YORK, by its agents, servants and/or employees operated and maintained a police force charged with the duty and responsibility of maintaining the peace in the City of New York.
  6. At all times hereinafter mentioned, defendant, NEW YORK CITY POLICE DEPARTMENT is an agency of defendant CITY OF NEW YORK.
  7. The defendant, CITY OF NEW YORK, is responsible for the practices, policies and customs of the NEW YORK CITY POLICE DEPARTMENT, as well as the hiring, screening, training, supervising, controlling, disciplining and retaining of those persons employed by the NEW YORK CITY POLICE DEPARTMENT, including Police Officer ROBIN LOHIER, Shield Number 09654, and Police Officer PETER PLAY, Shield Number 21378 of the 6<sup>th</sup> Precinct.
  8. The defendant, NEW YORK CITY POLICE DEPARTMENT is responsible for the practices, policies and customs of the NEW YORK CITY POLICE DEPARTMENT, as well as the hiring, screening, training, supervising, controlling, disciplining and retaining of those persons employed by the NEW YORK CITY POLICE DEPARTMENT, including Officer ROBIN LOHIER, Shield Number 09654, and Officer PETER PLAY, Shield Number 21378 from the 6<sup>th</sup> Precinct.
  9. The defendant, THE CITY OF NEW YORK, employed Officer ROBIN LOHIER, Shield Number 09654, as NEW YORK CITY POLICE DEPARTMENT Police Officers as that term is defined by the laws of the State of New York.
  10. The defendant, NEW YORK CITY POLICE DEPARTMENT, employed Officer PETER PLAY, Shield Number 21378, as NEW YORK CITY POLICE

DEPARTMENT Police Officers as that term is defined by the laws of the State of New York.

11. All Defendants, whether personally or by and through their employees, were, at all times material to this complaint, acting under color of state law, to wit, under color of statutes, ordinances, customs, policies and/or practices of the State of New York and/or THE CITY OF NEW YORK, THE NEW YORK CITY POLICE DEPARTMENT, Officer ROBIN LOHIER, Shield Number 09654, and Officer PETER PLAY, Shield Number 21378, and defendants' employees were also acting within the scope of and in furtherance of their employment.
12. At all times relevant herein, Defendants designated, Officer ROBIN LOHIER from the 6<sup>th</sup> Precinct, Shield Number 09654, and Officer PETER PLAY, Shield Number 21378, from the 6<sup>th</sup> Precinct, were and are natural persons employed by the CITY OF NEW YORK as duly appointed police officers. With respect to the allegations herein, Officer ROBIN LOHIER, Shield Number 09654, and Officer PETER PLAY, Shield Number 21378, from the 6<sup>th</sup> Precinct, acted under color of state law at all times and in the course of and duty of their employment and with the consent and approval of their employer.
13. On February 18, 2012, at approximately 05:50 AM, on 3<sup>rd</sup> Street, at or near its intersection with 6<sup>th</sup> Avenue, County and City of New York, State of New York, and such other places where Plaintiff was assaulted and battered, publicly humiliated and deprived of his civil rights by the CITY OF NEW YORK, their agents, servants and/or employees, including but not limited to NEW YORK CITY POLICE DEPARTMENT, Officer ROBIN LOHIER from the 6<sup>th</sup> Precinct, Shield Number 09654, and Officer PETER PLAY, Shield Number 21378, from the 6<sup>th</sup> Precinct, who acting in the performance of their employment and within the scope of their authority falsely and

- improperly arrested plaintiff, without any reasonable suspicion and/or probable cause or factual basis, without a warrant. Plaintiff was searched, seized, detained, arrested, handcuffed and transported to the 6<sup>th</sup> Precinct of the New York City Police Department for the offenses of possession and using cocaine, a violation under the Penal Law of the State of New York, by members of the New York City Police Department.
14. Plaintiff was initially booked on charges of possession of cocaine. The charges were thereafter dropped and the case was dismissed on February 27, 2012, at which time the Plaintiff was released.
  15. Plaintiff was held against his will and without his consent following the arrest for over 24 hours as he went through the system until he saw the judge.
  16. He was thereafter detained and held on bail and remained incarcerated until the charges were dismissed and he was released over 10 days later.
  17. During the time Plaintiff was in stopped, detained, and placed into custody, Officer ROBIN LOHIER, Shield Number 09654, and Officer PETER PLAY, Shield Number 21378, from the 6<sup>th</sup> Precinct, he was improperly treated. Plaintiff was arrested him on 3<sup>rd</sup> Street at or near its intersection with 6<sup>th</sup> Avenue, County of New York, State of New York. During the arrest, Plaintiff was physically and verbally assaulted by NEW YORK CITY POLICE DEPARTMENT Officers.
  18. The Plaintiff was then transported to the 6<sup>th</sup> Precinct where he was processed until taken to central booking and then court to appear at his arraignment.
  19. No probable cause existed to justify the arrest and no arrest warrant had been issued for Plaintiff's arrest.
  20. The Plaintiff was assaulted and battered by Police Officer ROBIN LOHIER and Police Officer PETER PAY by unlawfully and intentionally touching without justification,

- excuse, or consent, including but not limited to the use by police officers excessive force upon the Plaintiff causing injury. Specifically, the actions complained of include, but are not limited to, improperly handcuffing, shackling, and touching Plaintiff about his body, illegally searching Plaintiff improperly placing their hands about his body and person, without reasonable cause of suspicion, and arresting the Plaintiff.
21. The plaintiff *inter alia* sustained mental anguish, as well as other psychological injuries, including shame, humiliation, indignity, emotional distress, mistrustful feelings towards the police department, all as a result of the above-described assault and battery.
22. The aforesaid occurrences were the result of culpable acts and conduct of the defendant CITY OF NEW YORK, its agents, servants and/or employees, including but not limited to Officer ROBIN LOHIER, Shield Number 09654, and Officer PETER PLAY, Shield Number 21378, from the 6<sup>th</sup> Precinct, in unlawfully, illegally, unjustifiably, intentionally, maliciously, wantonly, recklessly, and without cause, reason, or justification, assaulting and battering the plaintiff and in inadequately improperly and incompetently training and employing its police officers, together with other negligence and carelessness.
23. By reason of all of the foregoing, plaintiff sustained conscious pain and suffering, severe, serious and permanent personal injuries; was obliged to undergo medical care and treatment, was incapacitated from his usual vocation, suffered great shock to his nervous system, incurred medical expenses and is thereby damaged in a sum of money exceeding the jurisdiction of all lower Courts.

**AS AND FOR A SECOND CAUSE OF ACTION**  
**ON BEHALF OF PLAINTIFF FOR FALSE ARREST**

24. Plaintiff repeats and realleges each and every allegation contained in Paragraphs "1" through "23" of this Complaint as if the same were more fully set forth herein.

25. On February 18, 2012, at approximately 05:50 AM, on 3<sup>rd</sup> Street at or near its intersection with 6<sup>th</sup> Avenue, County of New York, City of New York, State of New York, plaintiff was arrested and taken into custody by the defendant THE CITY OF NEW YORK through its agents, servants and/or employees, including but not limited to Officer ROBIN LOHIER, Shield Number 09654, and Officer PETER PLAY, Shield Number 21378, from the 6<sup>th</sup> Precinct.
26. The plaintiff had not committed any offense and the defendant THE CITY OF NEW YORK through its agents, servants and/or employees including Officer ROBIN LOHIER and Officer PETER PLAY did not have reasonable grounds or probable cause to believe that the Plaintiff committed any offense.
27. The defendant THE CITY OF NEW YORK through its agents, servants and/or employees was aware that probable cause did not exist for the arrest and detention of the plaintiff and that said arrest and detention were unlawful and without justification or excuse.
28. Upon information and belief, in all of the wrongful acts above alleged, defendant, through its agents, servants and/or employees acted without reasonable or probable cause and with malicious intent to arrest, oppress, and injure the plaintiff, and said actions were committed in bad faith.
29. By reason of the foregoing, plaintiff was falsely arrested and illegally deprived of his liberty and civil rights, was caused to and did incur legal expenses and is thereby damaged in a sum of money exceeding the jurisdiction of all lower Courts.

**AS AND FOR A THIRD CAUSE OF ACTION ON  
BEHALF OF PLAINTIFF FOR FALSE IMPRISONMENT**

30. Plaintiff repeats and realleges each and every allegation contained in Paragraphs "1"



through "29" of this Complaint as if the same were more fully set forth herein.

31. The plaintiff was falsely imprisoned by the defendant, THE CITY OF NEW YORK, through its agents, servants and/or employees, including but not limited to Officer ROBIN LOHIER, Shield Number 09654, and Officer PETER PLAY, Shield Number 21378, from the 6<sup>th</sup> Precinct, who procured and/or effected said false imprisonment, knowing their actions to be wrongful and malicious and without any basis, which false imprisonment commenced at or about 5:50 AM, on February 18, 2012 and was held following arraignment on bail until the case and all charges were dropped and the case dismissed, at which time Plaintiff was released.
32. Plaintiff spent over 10 days in custody as a direct result of the improper arrest by the defendants.
33. The defendant intended to confine the plaintiff and plaintiff was conscious of the confinement and plaintiff did not consent to the confinement.
34. The defendants' words, actions and the charges laid by them were willful, malicious, false, wrongful, without reason or basis and without probable cause and committed in bad faith and solely for the purpose of falsely imprisoning the plaintiff and damaging the plaintiff in his reputation and depriving him of his liberty.
35. By reason of the foregoing, plaintiff was falsely imprisoned and illegally deprived of his liberty and civil rights and is thereby damaged in a sum of money exceeding the jurisdiction of all lower courts.

**AS AND FOR A FOURTH CAUSE OF ACTION ON  
BEHALF OF PLAINTIFF FOR ABUSE OF PROCESS**

36. Plaintiff repeats and realleges each and every allegation contained in Paragraphs "1" through "35" of this Complaint as if the same were more fully set forth herein.

37. The actions of the defendant THE CITY OF NEW YORK, through its agents, servants and/or employees, including but not limited to Officer ROBIN LOHIER, Shield Number 09654, and Officer PETER PLAY, Shield Number 21378, from the 6<sup>th</sup> Precinct, in causing plaintiff to be arrested, falsely imprisoned, and prosecuted, were effected for the ulterior purposes of causing plaintiff to be arrested, falsely imprisoned, and prosecuted, were affected for the ulterior purposes of causing plaintiff to be unlawfully deprived of his liberty and civil rights, to suffer inconvenience, humiliation, shame, embarrassment, damage to his reputation and good name, and to incur legal expenses.
38. The arrest, false imprisonment, and prosecution of plaintiff by the defendants was wrongful, malicious, willful and without justification or excuse and an abuse of judicial process.
39. By reason of the foregoing, plaintiff was under color of process, unlawfully deprived of his liberty and civil rights, caused to suffer inconvenience, humiliation, shame and embarrassment, damage to his reputation and good name and incurred legal expenses all in a sum of money exceeding the jurisdiction of all lower Courts.

**AS AND FOR A FIFTH CAUSE OF ACTION ON  
BEHALF OF PLAINTIFF FOR NEGLIGENCE**

40. Plaintiff repeats and realleges each and every allegation contained in Paragraphs "1" through "36" of this Complaint as if the same were more fully set forth herein.
41. The defendant, herein, its agents, servants and/or employees, including but not limited to Officer ROBIN LOHIER, Shield Number 09654, and Officer PETER PLAY, Shield Number 21378, from the 6<sup>th</sup> Precinct, were negligent in: (a) hiring and retaining of a person or persons who was/were unfit to serve as custodial, correctional, court, legal,

clerical and/or police officers and who it knew or should have known had negligent, reckless, careless or dangerous propensities and a lack of proper temperament, organization, reliability, responsibility, carefulness and prudence; in that the CITY OF NEW YORK, its agents, servants and/or employees failed to exercise reasonable precautions in employing and retaining said officers by failing to properly investigate their background and employment records and/or having knowledge of said records, thereafter hiring and/or retaining said officers; (b) in the training and instruction of its custodial, correctional, court, legal, clerical and/or police officers by not exercising care in instructing them as to their department, duties, behavior and conduct as police officers and representatives of the CITY OF NEW YORK and in the training and instruction among other things, on the proper use of their nightsticks, handcuffs, etc. and/or method of arrest, detainment and/or release; and (c) in failing to use such care in the performance of custodial, correctional, court, legal, clerical and/or police officer's duties as a reasonably prudent and careful custodial, correctional, legal, court, clerical or police officer would have used under similar circumstances including but not limited to, improper and negligent use of or carrying out of their duty which a police officer of ordinary procedure would not have done all without any negligence on the part of the claimant contributing thereto.

42. By reason of the foregoing, plaintiff was caused to be falsely arrested and illegally deprived of his liberty and civil rights; was caused to suffer imprisonment and confinement; was caused to be assaulted and battered by the defendant, CITY OF NEW YORK, its agents, servants and/or employees, thereby sustaining conscious pain and suffering, severe, serious and permanent personal injuries.

**AS AND FOR A SIXTH CAUSE OF ACTION ON  
BEHALF OF PLAINTIFF FOR MALICIOUS PROSECUTION**

43. Plaintiff repeats and realleges each and every allegation contained in Paragraphs "1" through "42" of this Complaint as if the same were more fully set forth herein.
44. The defendant, THE CITY OF NEW YORK, its agents, servants, employees and/or police officers, including but not limited to Officer ROBIN LOHIER, Shield Number 09654, and Officer PETER PLAY, Shield Number 21378, from the 6<sup>th</sup> Precinct, were all acting in the performance of their employment, and within the scope of their authority against the plaintiff, by bringing the plaintiff before the New York County Criminal Court in the matter of THE PEOPLE OF THE STATE OF NEW YORK v. KENNETH COPELAND.
45. The plaintiff appeared before a Judge on the night he was arrested. The plaintiff had to appear because the defendant filed and pursued criminal charges against him. The Plaintiff was held following arraignment on bail until the case and all charges were dropped and the case was dismissed on February 27, 2012 in Part B, before the Honorable Judge Kotler, at which time plaintiff was released.
46. The CITY OF NEW YORK, its agents, servants, employees and/or police officers had no probable cause for the criminal proceeding, and the arrest, detention and criminal proceedings initiated, performed, continued and executed against the plaintiff was done with malice.
47. By reason of the foregoing, the plaintiff herein was caused to be falsely arrested and illegally deprived of his liberty and civil rights; was caused to suffer imprisonment and confinement; was caused to suffer conscious pain and suffering, severe, serious and permanent personal injuries; mental anguish, incurred medical expenses; incurred legal

expenses and was maliciously prosecuted; and is thereby damaged in a sum of money exceeding the jurisdiction of all lower Courts.

**AS AND FOR A SEVENTH CAUSE OF ACTION**  
**ON BEHALF OF PLAINTIFF**  
**AGAINST THE INDIVIDUAL DEFENDANTS**

48. Plaintiff repeats and realleges each and every allegation contained in Paragraphs "1" through "47" of this Complaint as if the same were more fully set forth herein.
49. Plaintiff in no way provoked or encouraged the aforesaid physical battery and other tortious conduct by the individual defendants, and further that the defendants' physical contacts with said plaintiff were not justified by any privilege held by the defendants or any probable cause or reasonable suspicion of any criminal conduct by said plaintiff, and said plaintiff was not engaged in any unlawful activity whatsoever.
50. If certain of the individual defendants did not themselves engage in tortious conduct or physically batter and abuse the plaintiff, or arrest him, said individual defendants failed to prevent the physical battery, arrest and abuse of the said plaintiff and other tortious conduct by the other individual defendants despite having a duty to do so, said failure to act being either intentional and/or in gross disregard of the civil rights of said plaintiff.
51. The aforesaid acts and/or omissions of the individual defendants were pursuant to an agreement and/or conspiracy among them to, while acting under color of state law, violate the civil rights of the plaintiff, and other non-Caucasian persons.
52. The aforesaid acts and/or omissions of the individual defendants caused the plaintiff severe personal injuries, social stigma, damage to his reputation, mental anguish and distress, and further that said plaintiff was caused to be confined and imprisoned as a result of said acts and/or omissions.

53. The aforesaid acts and/or omissions of the individual defendants violated the plaintiff's civil rights, as said rights are secured by 42 U.S.C. 1981, 1983, 1985(2)(3), 1986 and 1988, and the Constitutions of the State of New York and the United States, including the First, Fourth, Fifth, Eighth and Fourteenth Amendments thereto, said civil rights including, but not limited to the right to be free from arbitrary and groundless arrest; the right to be free from cruel and unusual punishment and summary punishment; the right to be free in his person from unlawful restraints on his movement; the right to not be subjected to imprisonment without due process of law and the right to enjoy equal protection of the laws; the right to have all the legal rights enjoyed by Caucasian persons, including the right to be secure in his person and/or property; the right to have persons entrusted with legal authority to act to enforce his civil rights to either act to enforce such rights or be themselves adjudicated as having violated the plaintiff's civil rights and the right to be free from conspiracies to violate his civil rights by those acting under color of state law.
54. As a result of the foregoing, plaintiff was caused to suffer damages in an amount that would be beyond the jurisdiction of any Court of this State that would otherwise have jurisdiction over this matter and seeks an additional award of punitive damages against the individual defendants in the amount of TWO MILLION (\$2,000,000.00) DOLLARS.

**AS AND FOR A EIGHTH CAUSE OF ACTION**  
**ON BEHALF OF PLAINTIFF AGAINST DEFENDANT CITY**

55. Plaintiff repeats and realleges each and every allegation contained in Paragraphs "1" through "54" of this Complaint as if the same were more fully set forth herein.
56. There was no probable cause for any of the allegations made by any of the individual

defendants of criminal or other improper conduct by the plaintiff.

57. There was no probable cause or other legal excuse or privilege for the aforesaid alleged instances of assault, battery, false arrest, false imprisonment, and intentional infliction of emotional distress upon said plaintiff.
58. The individual defendants falsely represented to other employees of the defendant CITY OF NEW YORK, and the Office of the District Attorney of New York County that plaintiff committed the aforesaid alleged criminal offense(s) in order to make it appear that there had been a justification for the arresting, imprisoning, assaulting, battering, trespass and use of physical force on the plaintiff and the criminal prosecution of plaintiff, in order to protect the individual defendants, or certain of such individual defendants, from civil and criminal liability for such acts.
59. Various employees of the defendant, CITY OF NEW YORK, knew that the individual defendants, or certain of the individual defendants, falsely represented to other employees of the defendant CITY OF NEW YORK that plaintiff had committed the criminal offenses previously alleged in order to make it appear that there had been a justification for the arresting, imprisoning, assaulting, battering, and use of physical force on plaintiff, and the criminal prosecution of plaintiff, in order to protect the individual defendants, or certain of the individual defendants, from civil and criminal liability for such acts, and said other employees of the defendant, CITY OF NEW YORK, violated the proper procedures of defendant CITY OF NEW YORK in failing to disclose such false statements by the individual defendants, or certain of the individual defendants, and/or otherwise assisted the individual defendants, or some of them, in making such false statements, all for the purpose of protecting the individual defendants, or some of them, from civil and criminal liability for the arresting, imprisoning, assaulting, and

battering of said plaintiff, and for the criminal prosecution of plaintiff.

60. By the actions described above, the defendant CITY OF NEW YORK, by the acts of its employees, including the individual defendants, or some of the individual defendants, in furtherance of the official policies and/or customs of defendant CITY OF NEW YORK, deprived plaintiff of the following clearly established and well-settled constitutional rights: (a) Freedom from the use of excessive and unreasonable force and unreasonable stops, frisks, searches and seizures, said rights being secured by the Fourth Amendment to the United States Constitution, which guaranteed to plaintiff that he be free from unreasonable seizures and searches of his person, and the Fifth and Fourteenth Amendments of the United States Constitution, which protected plaintiff from deprivation of liberty and summary punishment without due process of law; (b) Freedom from the deprivation of liberty and summary punishment without due process of the law, as said rights are secured by the Fifth and Fourteenth Amendments of the United States Constitution; (c) Freedom from unreasonable search and seizure of plaintiff's person and/or property, as said rights are secured by the Fourth and Fourteenth Amendments of the United States Constitution; (d) Freedom to peacefully associate and assemble, as said rights are secured by the First and Fourteenth Amendments of the United States Constitution.
61. The individual defendants or some of them, subjected plaintiff to the deprivations set forth in paragraph "48", aforesaid, either maliciously or by acting with a reckless disregard for whether plaintiff's rights would be violated by their actions.
62. The individual defendants, or some of them, committed the foregoing acts or omissions without just and legal cause, thereby violating the rights of plaintiff under the laws and Constitution of the United States, in particular the First, Fourth, Fifth and Fourteenth



Amendments, and his rights under the Constitution and laws of the State of New York.

63. In committing the aforesaid acts or omissions, the individual defendants, acted illegally and directly violated the rules and regulations of New York City Police Department and failed to enforce said rules and regulations, in particular those rules and regulations regarding the use of force, and more particularly deadly force, the proper procedures to follow during and after an arrest, the proper language to use when dealing with members of the public, the proper grounds for making an arrest, the proper means and manner in which to question a person in connection with a law enforcement investigation and the other appropriate rules and regulations governing defendants that were applicable in the circumstances.

64. The aforesaid alleged acts and/or omissions of the individual defendants were pursuant to, and in furtherance of, an official policy or custom of the defendant CITY OF NEW YORK.

65. The aforesaid official customs and practices of the defendant CITY OF NEW YORK were implemented and created by its employees, including those supervisory and/or commanding employees of the New York City Police Department whose acts and/or omissions create “official policies, customs and/or practices” within the meaning of 42 U.S.C. 1983 etc. Said official customs and practices included, but were not limited to, the following:

a) Encouraging, allowing, and/or ratifying a policy and custom whereby senior commanding police officers cover up or otherwise hinder the disciplining and/or prosecution of those police officers under their command that have engaged in unjustified, unreasonable and illegal use of force and search and arrest powers;

b) Maintaining a system for disciplining police officers and investigating civilian

complaints of improper police conduct that fails to credit testimony of complainants and other non-police officer witnesses and uncritically and without question relies on reports of police officers involved in such incidents;

c) Encouraging State and Federal District Attorneys to refrain from criminal prosecutions of police officers who violate the law and to hinder the efforts of those who seek to bring civil claims against such police officers;

d) Refusing to release to persons who claim they have been subject to unjustified, unreasonable and illegal use of force and search and arrest powers by police officers the defendants' internal and official documents relative to the incidents that give rise to such claims;

e) Maintaining a system for disciplining police officers and investigating civilian complaints of improper police conduct that is dominated and controlled by police department employees who are unable to be impartial and who systematically refuse to give proper weight to evidence of police misconduct;

f) Tolerating the use of racist slurs and sentiments among members of its police departments and failing to discipline or discharge those police officers who engage in such conduct;

g) Failing to properly hire, train and supervise police officers in a fashion that would encourage police officers not to engage in the unjustified, unreasonable, illegal and abusive use of force and search and arrest powers, and in ratifying, justifying, and protecting from civil and criminal liability the acts of those police officers that are unjustified, unreasonable and involve the illegal or abusive use of force and search and arrest powers.

h) Having and allowing senior police officers to make public comments exonerating police officers accused of unjustified, unreasonable and illegal use of force and search and arrest powers before internal investigations of such police officers' conduct is completed.

i) Maintaining and operating police Internal Affairs Units in which the

supervisors of said Units engage in a systematic policy and practice of refusing to fully investigate complaints of police misconduct. Said supervisors also intentionally obstruct investigations of police misconduct by instructing those persons under their command not to seek relevant and necessary evidence to document claims of police misconduct. Said supervisors also enforce, encourage, and maintain a policy whereby substantial amounts of information obtained in police internal affairs investigations are not released to district attorneys' offices that are considering criminal prosecutions of police officers, said policy having the intent and/or effect of hampering criminal prosecutions of police officers who violate the law.

j) Failing to act to discipline, suspend and/or otherwise take remedial action against those employees of the New York City Police Department who, while acting under the color of state law, violated the civil rights of members of the public.

k) Allowing, causing, tolerating, creating, suffering and/or otherwise permitting widespread racist sentiments among its police officers, and in particular condoning and creating, through inaction, an official policy, custom and practice of abusive and illegal conduct by its police officers that violated the civil rights of non-Caucasians.

l) Allowing, suffering, creating and/or otherwise permitting an environment whereby a custom and practice known as "the wall of silence" exists. Said custom and practice involves a virtually uniform refusal by New York City police officers to testify truthfully about instances of police misconduct and civil rights violations. Said custom and practice involves either failing to testify about, or otherwise act to prevent, police misconduct and civil rights violations. Said custom and practice also involves perjury by police officers that is used to exonerate other police officers from charges of misconduct and/or civil rights violations and/or is used to deem such charges "administratively unproved" for the purpose of Internal Affairs investigations and administrative discipline of police officers.

m) Allowing, suffering, creating and/or otherwise permitting an official policy, custom and/or practice of hiring and retaining for employment police officers with predispositions to abuse and violate the civil rights of others, and in particular non-Caucasians. This policy, custom and practice is evidenced, in part, by the CITY OF NEW YORK'S inadequate and/or non-existent attempts to screen applicants with such tendencies and exclude them from employment as police officers and/or discharge such persons from employment as police officers.

n) Active participation in and/or condoning of, conspiracies by various members of its police force, including senior commanding and/or other supervisory police officers, to, while acting under color of state law, deprive non-Caucasian persons of their civil rights.

66. During all relevant times, the defendant CITY OF NEW YORK permitted and tolerated a pattern and practice of unjustified, unreasonable and illegal use of force and search and arrest powers on non-Caucasian persons by its police officers. Although such actions were improper and illegal, the police officers involved were not prosecuted, disciplined, or subjected to restraint, and such incidents were, in fact, covered up with official claims that such improper and illegal acts were justified and proper and/or that the evidence available was insufficient to either charge the police officers involved with committing such acts or exonerate such police officers or find that the claims of improper or illegal conduct were unfounded. As a result, the police officers employed by defendant CITY OF NEW YORK were caused and encouraged to believe that non-Caucasian persons could be subjected to unjustified, unreasonable and illegal use of force and search and arrest powers, and that such acts or omissions would, in fact, be permitted and ratified as just and proper by the defendant CITY OF NEW YORK.

67. Alleged victims of the aforesaid wrongful actions, policy and custom of the defendant CITY OF NEW YORK prior to November 3, 1994, included Eleanor Bumpers, Miguel

Alamo, Edmund Perry, Mark Davidson, Arthur Miller, Lee Johnson, Gerard Papa, James Rampersant, Jr., and others.

68. The defendant, CITY OF NEW YORK, exonerated the police officer involved in the shooting of Edmund Perry, who was shot on June 12, 1985, and a grand jury refused, upon the evidence presented to it, to indict said police officer for any crime in connection with said shooting. Despite this, said defendant later paid a substantial sum of money to settle a federal civil rights claim brought regarding Edmund Perry's death.
69. The defendant, CITY OF NEW YORK, was made aware of an allegation that members of the 113<sup>th</sup> Precinct of the New York City Police Department falsely arrested Miguel Alamo on August 19, 1988 and allegedly falsely charged Miguel Alamo with possession of stolen property, weapons possession and resisting arrest, and that said police officers allegedly beat Miguel Alamo and subjected him to racial slurs. Despite such knowledge, defendant CITY OF NEW YORK failed to take any action to see that the police officers of the 113<sup>th</sup> Precinct were properly trained, disciplined, and supervised to prevent the occurrence of such incidents.
70. The defendant, CITY OF NEW YORK, was aware that in April of 1983 police officers arrested, and allegedly beat, and subjected to racial slurs Lee Johnson, a religious minister and divinity student. Said defendant was made aware of these alleged acts of its police officers and exonerated the police officers involved in the incident of any wrongdoing. Further, the mayor of defendant CITY OF NEW YORK publicly stated that he doubted the veracity and truthfulness of Lee Johnson's allegations.
71. Certain employees of the defendant, CITY OF NEW YORK, were involved in the shooting death of Eleanor Bumpers in October of 1984. Despite the defendant, CITY OF NEW YORK'S claims of no wrongdoing said defendant paid a substantial sum of

money to settle a lawsuit brought by Eleanor Bumpers' Estate over said death.

72. Certain employees of the police department of the defendant CITY OF NEW YORK were involved in the arrest and physical attack upon Gerard Papa and James Rampersant, Jr. in March of 1986. The defendant CITY OF NEW YORK denied any wrongdoing related to said arrest and physical attack. Despite such denial the defendant CITY OF NEW YORK was found at trial to be liable for substantial compensatory damages to Gerard Papa and James Rampersant, Jr., as a result of said arrest and physical attack. Upon information and belief, it was also found at trial that the defendant CITY OF NEW YORK, and/or the employees of its police department, had violated the civil rights of Gerard Papa and James Rampersant as those rights are protected by 42 U.S.C. Section 1983.
73. In addition to permitting a practice of unjustified, unreasonable and illegal and abusive use of force and search and arrest powers against non-Caucasian persons, the defendant CITY OF NEW YORK failed to maintain a proper system for the investigation of complaints of unjustified, unreasonable and illegal and abusive use of force and search and arrest powers by police officers.
74. The defendant CITY OF NEW YORK has maintained systems for the investigation of complaints of unjustified, unreasonable and illegal and abusive use of force and search and arrest powers by police officers which have failed to properly identify such actions by its police officers and subject police officers who commit such acts to closer supervision, remedial training, discipline, or restraint, to the extent that it has become the *de facto* policy and custom of said defendant to tolerate and ratify the unjustified, unreasonable and illegal use of force and search and arrest powers by its police officers.
75. Further evidence of the defendant CITY OF NEW YORK'S failure to adequately

investigate incidents of unjustified, unreasonable, abusive and illegal use of force and search and arrest powers by police officers, and to adequately discipline police officers involved in such incidents, and that such failures constitute a “de facto” custom and policy by said defendant to have its employees engage in the violation of persons, such as the plaintiff’s, federally protected civil rights is contained in the following findings of the Report of the Civilian Complaint Review Board, New York City Police Department, October 1987 to December 1989:

a) That investigations of police officers are hampered by failures to obtain the cooperation of witnesses and victims, medical records, contemporaneous photographs of injuries and identifications of police officers;

b) That investigators of police misconduct lack adequate writing skills and are underpaid, and that such positions are inadequately staffed;

c) That there is a failure to investigate patterns of misconduct committed by individual police officers or in specific precincts;

d) That only 15 percent of the civilian complaints against the New York City Police Department were “resolved on the merits” and that the “inability to resolve civilian complaints against police officers on their merits is a major problem for the Police Department.”

e) That there is a “code of silence” in the New York City Police Department whereby police officers of all ranks refuse to provide evidence to support complainants’ claims of police misconduct. Said “code of silence” was evidenced by the finding that “. . . in none of the approximately 8,000 complaints reviewed by the [Civilian Complaint Review] Board in 1987 and 1988 has any police officer provided evidence in support of a complainant.”

76. There also exists, as a policy and custom of the defendant CITY OF NEW YORK a “code of silence” which is pervasive throughout said defendant’s police department.

Said “code of silence” is abided to by virtually all police officers of all ranks, including supervisory police officers, and involves the refusal of police officers to give honest testimony, or any testimony whatsoever, about incidents involving illegal, improper, and abusive conduct by police officers that violate persons, such as the plaintiff’s civil rights. Said “code of silence” is tolerated, if not encouraged, by defendant CITY OF NEW YORK as a means to prevent effective criminal prosecution of those police officers who engage in illegal conduct and to shield defendant CITY OF NEW YORK from possible civil liability for the acts of those police officers who violate persons, such as the plaintiff’s civil rights.

77. The foregoing acts, omissions, systemic flaws, policies, and customs of the defendant CITY OF NEW YORK caused said defendant’s police officers to believe that unjustified, unreasonable and illegal use of force and search and arrest powers would not be aggressively, honestly and properly investigated, and that such acts as a matter of policy and custom would be ratified, concealed, and justified by defendant CITY OF NEW YORK, with the foreseeable result that defendant CITY OF NEW YORK’S police officers are more likely to engage in the unjustified, unreasonable and illegal and abusive use of force and search and arrest powers, particularly against Blacks and non-Caucasians.
78. As a direct and proximate result of the aforesaid acts, omissions, systemic flaws, policies and customs of the defendant, CITY OF NEW YORK, said defendant’s employees, including all relevant individual defendants, did assault, batter, falsely imprison, swear out false criminal complaints against, subject to excessive and deadly force, intentionally inflict emotional distress upon, trespass upon the person of, and in a grossly negligent and wantonly reckless manner inflict personal injuries upon plaintiff.



79. The defendant, CITY OF NEW YORK, by reason of its aforesaid policies, customs, acts, omissions, and its ratification of the acts of its agents, servants and/or employees, has deprived plaintiff of rights and liberties secured to her through the Constitution and Laws of the United States of America and the State of New York, including the First, Fourth, Fifth, Eighth, and Fourteenth Amendments of the United States Constitution and 42 U.S.C. Sections 1983 and 1988, and has caused plaintiff great pain and physical, emotional, and psychological injuries.
80. The aforesaid acts, ratifications, omissions, customs and policies of the defendant CITY OF NEW YORK were done with a deliberate and/or grossly negligent indifference to the protection of the federally protected civil rights of persons such as the plaintiff and said acts, ratifications, omissions, customs and policies of defendant CITY OF NEW YORK were the direct and proximate cause of the aforesaid violations of the civil rights secured to plaintiff under 42 U.S.C. Sections 1981, 1983, 1985(2)(3), 1986 and 1988.
81. As a direct and proximate result of the above described violations of his constitutional and statutory rights plaintiff suffered grievous bodily harm and emotional injury, all of which was in violation of his rights under the laws and Constitution of the United States, including the First, Fourth, Fifth, Eighth, and Fourteenth Amendments and 42 U.S.C. Sections 1981, 1983, 1985(2)(3), 1986 and 1988.
82. As a result of the foregoing, plaintiff was caused to suffer damages in an amount that would be beyond the jurisdiction of any Court of this State that would otherwise have jurisdiction over this matter.

WHEREFORE, plaintiff demands judgment of defendant in each Cause of Action for a sum of money exceeding the jurisdiction of all lower Courts, together with interest, costs and disbursements of this action.

**PLAINTIFF DEMANDS A TRIAL BY JURY**

Dated: New York, New York  
April 17, 2013

Yours etc.,

/s/  
ADAM M. THOMPSON, ESQ.  
Attorney for Plaintiff  
111 John Street, Suite 2403  
New York, New York 10038  
(212) 267-2424  
1-888- 279-7324

SUPREME COURT OF THE STATE OF NEW YORK  
COUNTY OF NEW YORK

-----X  
KENNETH COPELAND,

Plaintiff,

-against-

THE CITY OF NEW YORK, NEW YORK CITY  
POLICE DEPARTMENT,  
POLICE OFFICER ROBIN LOHIER, SHIELD 09654,  
FROM 6<sup>TH</sup> PRECINCT, POLICE OFFICER PETER PLAY,  
SHIELD 21378, FROM 6<sup>TH</sup> PRECINCT,

Defendants.

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**SUMMONS AND VERIFIED COMPLAINT**

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Yours etc.,

/s/

ADAM M. THOMPSON, ESQ.

Attorney for Plaintiff

111 John Street, Suite 2403

New York, New York 10038

(212) 267-2424

1-888-279-7324